General Land Office.

[Public Land Order 122]

OREGON

MODIFICATION OF EXECUTIVE ORDER CREATING POWER SITE RESERVE NO. 26

By virtue of the authority contained in section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (U.S.C., title 43, sec. 141), and pursuant to Executive Order No. 9146 of April 24, 1942: *It is ordered,* As follows:

The Executive order of July 2, 1910, creating Power Site Reserve No. 26, is hereby modified so as to permit Deschutes County, Oregon, to construct a highway across the following-described public lands on the location shown on maps filed in the district land office at The Dalles, Oregon, on September 11, 1941, and December 10, 1941, Serials 031774 and 031797, respectively, subject to the condition that the use of the highway in whole or in part shall be discontinued without liability or expense to the United States or its licensees when found by the Secretary of the Interior to be in conflict with project works authorized by the United States.

WILLAMETTE MERIDIAN

T. 14 S., R. 12 E.,
Sec. 11, S½SW¼, SW¼SE¼;
Sec. 14, NW¼NW¼.

ABE FORTAS,
Acting Secretary of the Interior.

MAY 12, 1943.

[F. R. Doc. 43-8129; Filed, May 21, 1943; 4:46 p. m.]

[Public Land Order 123]

CALIFORNIA

LAND WITHDRAWAL

Withdrawing public lands for use in connection with the prosecution of the war.

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943: *It is ordered,* As follows:

Subject to valid existing rights, and to the transmission line withdrawal under Federal Power Commission Project No. 1396, the following-described public lands are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved under the jurisdiction of the Department of the Interior for use in connection with the prosecution of the war:

SAN BERNARDINO MERIDIAN

T. 7 N., R. 5 W.,
Sec. 30, lots 1 and 2 of NW¼ and lots 1 and 2 of SW¼;
Sec. 31, lots 1 and 2 of NW¼.
T. 7 N., R. 6 W., sec. 26.

The areas described aggregate 1137.44 acres.

This order shall take precedence over, but shall not rescind or revoke, the withdrawal for classification and other purposes made by Executive Order No. 6910 of November 26, 1934, as amended, so far as such order affects any of the above-described lands.

ABE FORTAS,
Acting Secretary of the Interior.

MAY 14, 1943.

[F. R. Doc. 43-8130; Filed, May 21, 1943; 4:46 p. m.]

[Air-Navigation Site Withdrawal 204]

NEVADA

ESTABLISHMENT OF AIR-NAVIGATION SITE WITHDRAWAL

By virtue of the authority contained in section 4 of the act of May 24, 1928. 45 Stat. 729 (U.S.C., title 49, sec. 214), and section 1 of the act of June 28, 1934, 48 Stat. 1269 (U.S.C., title 43, sec. 315): *It is ordered,* As follows:

Subject to valid existing rights, the following-described public lands in Nevada are hereby withdrawn from all forms of appropriation under the public-land laws and reserved for the use of the Civil Aeronautics Administration, Department of Commerce, for use in the maintenance of air-navigation facilities, the reservation to be known as Air-Navigation Site Withdrawal No. 204:

MOUNT DIABLO MERIDIAN

T. 8 S., R. 43 E., (unsurveyed),
Sec. 29, SW¼SW¼;
Sec. 30, SE¼SE¼;
Sec. 31, E½NE¼, E½E½SW¼, and SE¼;
Sec. 32, NW¼ and W½SW¼.
T. 9 S., R. 43 E., (unsurveyed),
Sec. 5, N½NW¼NW¼;
Sec. 6, N½NE¼NE¼.
The areas described aggregate 640 acres.

This order shall take precedence over, but shall not rescind or revoke, the order of the Acting Secretary of the Interior effective November 24, 1937, withdrawing certain lands pending the establishment of a grazing district, so far as it affects the above-described lands.

It is intended that the lands described herein shall be returned to the administration of the Department of the Interior, when they are no longer needed for the purpose for which they are reserved.

ABE FORTAS,
Acting Secretary of the Interior.

MAY 11, 1943.

[F. R. Doc. 43-8131; Filed, May 21, 1943; 4:45 p. m.]

NEW MEXICO

REVOCATION OF LAND WITHDRAWAL

Revocation in part of departmental order of July 8, 1931, affecting certain public lands in New Mexico.

The order of the Secretary of the Interior, dated July 8, 1931, which temporarily withdrew certain public lands in New Mexico and Arizona, in aid of pending legislation to define the boundaries of the Navajo Indian Reservation and for other purposes, is hereby revoked as to the following described lands in New Mexico:

NEW MEXICO PRINCIPAL MERIDIAN

Tps. 16 N., R. 4, 5, 6, W.

ABE FORTAS,
Acting Secretary of the Interior.

MAY 7, 1943.

[F. R. Doc. 43-8132; Filed, May 21, 1943; 4:46 p. m.]

[Air-Navigation Site Withdrawal 181, Revoked]

OREGON

REVOCATION OF AIR-NAVIGATION SITE WITHDRAWAL

The order of the Secretary of the Interior of June 13, 1942, withdrawing the following-described lands in Oregon for use by the Department of Commerce in the maintenance of air-navigation facilities, and modifying Oregon Grazing District No. 5, is hereby revoked:

WILLAMETTE MERIDIAN

T. 16 S., R. 13 E.,
Sec. 3, NW¼SW¼ and W½NE¼SW¼.
The areas described aggregate 60 acres.

OSCAR L. CHAPMAN,
Assistant Secretary of the Interior.

MAY 13, 1943.

[F. R. Doc. 43-8166; Filed, May 22, 1943; 8:01 p. m.]

Office of Indian Affairs.

WIND RIVER RESERVATION, WYOMING

ORDER OF RESTORATION

Whereas, pursuant to the provisions of the Act of March 3, 1905 (33 Stat. 1016), the Shoshone-Arapahoe Tribes of Indians in Wyoming ceded to the United States a large area of their reservation in the State of Wyoming, established under the Treaty of July 3, 1868 (15 Stat. 873), and

Whereas, within three land use districts there are certain undisposed-of ceded or "opened" lands described as follows:

WIND RIVER MERIDIAN

LAND USE DISTRICT NO. 5

T. 7 N., R. 1 E.,
Secs., 4, 5, 6, 7, 8, and 9;
Sec. 15, NW¼, N½SW¼, SE¼SW¼;
Sec., 16, N½, SW¼, W½SE¼, NE¼SE¼;
Sec., 17, N½, SW¼, W½SE¼;
Secs., 18 and 19;
Sec., 20, W½, SE¼, S½NE¼, NW¼NE¼;
Sec., 21, W½, SE¼, S½NE¼, NW¼NE¼;
Sec., 22, SW¼SW¼, E½W½;
Sec., 27, NW¼;
Sec., 28, N½;
Sec., 29, NE¼, N½NW¼;
T. 7 N., R. 1 W.;
Sec., 1, Lots 3 and 4, S½NW¼, S½S½;
Sec., 2, SE¼;
Sec., 11;
Sec. 12, N½, SE¼, E½SW¼, NW¼SW¼;
Sec., 13, E½, SW¼, E½NW¼;
Sec., 14;
Sec., 23, N½NE¼;
Sec., 24;

LAND USE DISTRICT NO. 9

T. 4 N., R. 2 W.;
Sec., 21, E½NW¼, SW¼NW¼, NW¼SW¼, SW¼SE¼;
Sec., 28, W½NE¼;

LAND USE DISTRICT NO. 14

T. 5 N., R. 4 E.;
Sec. 1, Lots 1, 2, 3, and 4, S½NE¼ SE¼NW¼;
Sec., 2, Lot 1;
Sec., 12, SE¼, E½SW¼, SE¼NW¼;
Sec., 13, E½, E½W½;
Secs., 24, 25, and 36;
T. 6 N., R. 4 E.,
Sec., 36, N½;
T. 5 N., R. 5 E.;
Secs., 5 and 6;
T. 6 N., R. 5 E.;
Sec., 31, S½;
Sec., 32, S½.

Whereas no part of the land use districts involved is under lease or permit to non-Indians, and

Whereas the Shoshone-Arapahoe Tribes of Indians of the Wind River Reservation require additional grazing lands to support their expanded livestock industry, and

Whereas the Superintendent of the Wind River Reservation and the Commissioner of Indian Affairs have recommended the restoration of the undisposed-of, ceded lands located within the aforesaid land use districts.

Now, therefore, by virtue of authority vested in the Secretary of the Interior by section 5 of the Act of July 27, 1939 (53 Stat. 1128–1130), I hereby find that restoration to tribal ownership of the lands described above which are classified as undisposed-of, ceded lands of the Wind River Reservation, Wyoming, and which total 17,800 acres more or less, will be in the tribal interest, and they are hereby restored to tribal ownership for the use and benefit of the Shoshone-Arapahoe Tribes of Indians of the Wind River Reservation, Wyoming, and are added to and made a part of the existing Wind River Reservation, subject to any valid existing rights.

OSCAR L. CHAPMAN,
Assistant Secretary of the Interior.

APRIL 26, 1943.

[F. R. Doc. 43–8165; Filed, May 22, 1943; 3:01 p. m.]

DEPARTMENT OF AGRICULTURE.

War Food Administration.

NOTICE OF HEARING ON HANDLING OF MILK IN DESIGNATED AREAS

Proposed amendment to the tentatively approved marketing agreements and to the orders regulating the handling of milk in the following marketing areas:

Greater Boston, Massachusetts
Chicago, Illinois
Cincinnati, Ohio
Dubuque, Iowa
Duluth-Superior
Fall River, Massachusetts
Fort Wayne, Indiana
Greater Kansas City
La Porte County, Indiana
Louisville, Kentucky
Lowell-Lawrence, Massachusetts
New Orleans, Louisiana
New York Metropolitan
Omaha-Council Bluffs
Philadelphia, Pennsylvania
Quad Cities (Illinois-Iowa)
St. Louis, Missouri
Sioux City, Iowa
Toledo, Ohio
Washington, D. C.

Notice is hereby given of a hearing to be held in the Auditorium, South Building, United States Department of Agriculture, Washington, D. C., beginning at 10 a. m., e. w. t., May 28, 1943, with respect to a proposed amendment to the tentatively approved marketing agreements and to the orders regulating the handling of milk in the above-mentioned marketing areas.

This notice is given pursuant to the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 1940 ed. 601 et seq.), and in accordance with the applicable rules of practice thereunder (7 CFR, 1941 Supp., 900.1–900.17; 7 F.R. 3350; 8 F.R. 2815).

This public hearing is for the purpose of receiving evidence with respect to a proposed amendment to each of the tentatively approved marketing agreements and orders regulating the handling of milk in the aforementioned marketing areas. The amendment has been proposed by the Dairy and Poultry Branch, Food Distribution Administration, and is hereinafter set forth in detail. The proposed amendment has not received official approval, and at the hearing evidence will be received relative to the terms of the proposed amendment. It is proposed the proposed amendment be added as the final section of each of the aforementioned tentatively approved marketing agreements and orders. The provisions of the proposed amendment are as follows:

§ 000.00 *Emergency provision.* Whenever the provisions hereof require the market administrator to use average price quotations for any dairy products for the purpose of determining class prices or for any other purpose, the market administrator shall use the quotations herein provided or such quotations plus the amount of any subsidy being paid on the product to which the price applies, whichever is higher: *Provided, however,* That if for any reason no price quotation is available or published for the product specified the market administrator shall use the applicable maximum uniform price established by regulations of the Office of Price Administration plus the amount of any subsidy being paid: *Provided further,* That if neither price quotations nor maximum uniform prices are available, the market administrator shall use an average price determined by the Secretary to be equivalent to or comparable with the average price quotation specified.

Copies of this notice of hearing may be obtained from the Hearing Clerk, Office of the Solicitor, United States Department of Agriculture, in room 1331, South Building, Washington, D. C., or may be there inspected.

Dated: May 22, 1943.

[SEAL] JESSE W. TAPP,
Acting War Food Administrator.

[F. R. Doc. 43–8211; Filed, May 24, 1943; 11:13 a. m.]

DEPARTMENT OF LABOR.

Wage and Hour Division.

CANCELLATION AND AFFIRMATION OF LEARNER EMPLOYMENT CERTIFICATES

Notice of the cancellation of one special certificate and the affirmation of another special certificate issued to Westbury Cravat Company, Inc. for the employment of learners at wage rates less than the applicable minimum under section 6 of the Fair Labor Standards Act of 1938.

Notice is hereby given of an order, dated May 17, 1943, cancelling as of May 9, 1941, a special certificate authorizing the employment of learners at less than the minimum wage rate, issued to Westbury Cravat Company, Inc. of Brooklyn, New York for the effective period from May 5, 1941, to August 18, 1941, and affirming a special certificate authorizing the employment of learners at less than the minimum wage issued to the said company for the effective period from August 18, 1941, to November 10, 1941.

Signed at New York, New York this 17th day of May 1943.

ISABEL FERGUSON,
Authorized Representative of the Administrator.

[F. R. Doc. 43–8135; Filed, May 22, 1943; 10:47 a. m.]

LEARNER EMPLOYMENT CERTIFICATES

ISSUANCE TO VARIOUS INDUSTRIES

Notice of issuance of special certificates for the employment of learners under the Fair Labor Standards Act of 1938.

Notice is hereby given that special certificates authorizing the employment of learners at hourly wages lower than the minimum rate applicable under section 6 of the Act are issued under section 14 thereof and § 522.5 (b) of the regulations issued thereunder (August 16, 1940, 5 F.R. 2862) to the employers listed below effective May 24, 1943.

The employment of learners under these certificates is limited to the terms and conditions as designated opposite the employer's name. These certificates are issued upon the employers' representations that experienced workers for the learner occupations are not available for employment and that they are actually in need of learners at subminimum rates in order to prevent curtailment of opportunities for employment. The certificates may be cancelled in the manner provided for in the regulations and as indicated on the certificate. Any person aggrieved by the issuance of the certificates may seek a review or reconsideration thereof.

NAME AND ADDRESS OF FIRM, PRODUCT, NUMBER OF LEARNERS, LEARNING PERIOD, LEARNER WAGE, LEARNER OCCUPATION, EXPIRATION DATE

Acme Cloth Reel Company, 214 West McBee Avenue, Greenville, South Carolina; Converted paper; 2 learners (T); Reinforcing ends of cloth reels and pasting lettered labels for a learning period